6/14/2023 - National Grid - Procedural Conf. 23-G-0225/226

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service.

CASE 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service.

VIRTUAL PROCEDURAL CONFERENCE HEARING

DATE: June 14, 2023

TIME: 10:03 a.m. to 11:04 a.m.

VENUE: WebEx

BEFORE: A.L.J. JAMES A. COSTELLO

A.L.J. MAUREEN F. LEARY

APPEARANCES:

FOR NATIONAL GRID:
KENNETH T. MALONEY
KRISTOPHER P. KIEFER
PHILIP DECICCO

FOR NY DEPARTMENT OF PUBLIC SERVICE:
NICHOLAS FORST
MOLLY MAGNUS
PETER HILARIO

FOR CITY OF NEW YORK:
ADAM T. CONWAY
ROBERT LOUGHNEY
MELANIE M. FRANCO

FOR UTILITY INTERVENTION UNIT:
JILLIAN KASOW

FOR PUBLIC UTILITY LAW PROJECT OF NY, INC.:
ANDREW SAAVEDRA
THERESA A. HOTTE
LAURIE WHEELOCK
ALICIA LANDIS
CYAYN LEGUIRE
GABRIEL SLAUGHTER
TEODORE PAPILLA

FOR NATURAL RESOURCES DEFENSE COUNCIL:
CHRISTOPHER CASEY

FOR BOB WYMAN:
BOB WYMAN

(The procedural conference commenced at 10:03 a.m.)

A.L.J. LEARY: We're getting a little feedback. Apologies. We're going to start in a few moments. I want to ask everyone please to mute your computer. Thank you. Good morning, everyone. We call case 23-G-0225 proceeding on the motion of the commission as to the rates, charges, rules, and regulations of the Brooklyn Union Gas Company, doing business as National Grid New York, for gas service.

And case 23-G-0226 proceeding on motion of the Commission as to the rates, charges, rules, and regulations of KeySpan Gas East Corporation, doing business as National Grid, for Gas Service. Good morning, everyone. Again, my name is Maureen Leary.

With me is Judge James Costello. We are the Administrative Law Judges assigned by the Department of Public Service and the Public Service Commission to oversee these cases. We are here pursuant to the Secretary's notice of procedural and technical conferences that was issued on May 23rd, 2023.

We're going to start with the

procedural conference today, and then we will follow with the technical conference at which the companies will present an overview of its filing. I want to start with taking appearances for the companies, National Grid First.

MR. MALONEY: Good morning, Your Honors. On behalf of KEDNY and KEDLI my name is Kenneth T. Maloney at the law firm of Cullen and Dykman, L.L.P.

A.L.J. LEARY: Good morning. Anyone else on behalf of the company with you?

MR. KIEFER: Yes. Good morning, Your Honors. Kristopher P. Kiefer, in-house counsel, Assistant General Counsel for National Grid.

A.L.J. LEARY: I'm -- I'm not asking everyone for the company to make an appearance. If one of you could just identify those folks that are participating today on behalf of the company, if you would, if you know.

MR. KIEFER: Yeah, Judge Leary, that'd be Mr. Maloney and myself. Thank you.

A.L.J. LEARY: Great. Thank you. For the Department of Public Service Trial staff.

MR. FORST: Good morning, Your Honors.

This is Nicholas Forst from the Department of Public Service, appearing behalf of the Department with Molly Magnus and Peter Hilario.

A.L.J. LEARY: Good morning. On behalf of the City of New York.

MR. CONWAY: Good morning, Your Honors. This is Adam Conway from the law firm of Couch White, representing the City of New York. And with me today is Robert Loughney and Melanie Franco, also from Couch White as well.

A.L.J. LEARY: Thank you. For the Department of State, Division of Consumer Protection Utility Intervention Unit.

MS. KASOW: Good morning, Your Honors. This is Jillian Kasow, on behalf of the Utility Intervention Unit.

A.L.J. LEARY: Thank you. And on behalf of the Public Utility Law Project of New York.

MR. SAAVEDRA: Good morning, Your Honors. This is Andrea Saavedra, with the Public Utility Law Project. I'm joined by my colleagues; Theresa Hotte, Alicia Landis, Laurie Wheelock, Cyayn Leguire, Gabriel Slaughter, and Theodore Papilla (phonetic spelling).

A.L.J. LEARY: Thank you. Would you say and spell your last name again for me?

MR. SAAVEDRA: Of course. It's Saavedra. That's S-A-A-V as in Victor -E-D-R-A.

A.L.J. LEARY: Great. Because, of course, my notes wrote down Ms. Wheelock, so because I usually -- we usually see her. Okay. On behalf of the Alliance for a Green Economy. Anyone here on behalf of ACE? Actually, that's not ACE, AGREE, I think, right? On behalf of SANE Energy Project, anyone appearing on behalf of SANE -- SANE?

Okay. IBEW Local Union 1049. No one? For the Natural Resources Defense Counsel. Anyone participating for N.R.D.C.?

MR. CASEY: Yes. Good morning. This is Christopher Casey with N.R.D.C.

A.L.J. LEARY: Thank you, Mr. Casey. On behalf of -- Power and Gas, L.L.C.? Someone isn't on mute. Would you please mute your phone or computer? Thank you. Mr. Wyman? On behalf of Bob Wyman. Are you appearing today, Mr. Wyman?

MR. WYMAN: Yes. Good morning, Your Honors. Bob Wyman is here.

A.L.J. LEARY: Thank you. And Newtown

Creek Alliance. Anyone on behalf of Newtown Creek Alliance appearing today? Okay. Is there anyone else participating in the WebEx today that would like to make an appearance? Please state your name and your -- the group you represent if any?

None. Okay. Let's go straight to the task at hand, which is party status. Is anyone appearing at the -- on the WebEx call today that has not filed a party status request form in the Department's Matter Management system or D.M.M.? Anyone? Okay. Most parties should have had the opportunity to review the request for party status.

Are there any objections with respect to any of those requests by any posts or entity that has sought party status? On behalf of the company?

MR. MALONEY: No objections, Your Honor.

A.L.J. LEARY: Anyone else have any objections? Okay. We will issue a ruling, uh, on party status shortly. You can assume that the parties who have identified themselves at this point will be named as parties to the cases as appropriate, and please proceed accordingly, particularly with respect to the service of any documents.

Going forward, just for everyone's edification, request for party status will be treated as motions. And that person seeking party status will be provisionally added to the party list, subject to the objection of others. We certainly would like to hear objections sooner than later, although under the Commission's regulations, you have eight days. I'd really like to see that shortened, so that we know right away.

If no timely objections are made to a party's request for party status, that party and all other parties can assume that party status has been conferred. Reminder to the Department's trial staff, please file the list of persons that have been designated as trial staff as soon as practicable as required by Rule 4.3(d).

Next, I'd like to cover the protective order that we circulated in draft form yesterday. We did this as a courtesy because there -- there -- there have been, what I'll call, rumblings that perhaps we should revisit some of its provisions.

I'd like to hear now if -- you've had enough time to review it and you would be proposing any changes to the protective order. I don't need a

-- a long litany of what the changes are. I just need to know whether there is some preference to somehow revise that protective order prior to our adoption of it in a ruling.

Let me start with the company. And I -- I'm not trying to put you on the spot. In fact, Judge Costello and I set Friday, June 16th as the deadline for actual responses, but we would like to get a sense right now if, in fact, we're going to get anything on that date.

So starting with the company, are there any proposed revisions or changes to the protective order that you would like us to consider and of course, have the other parties consider?

MR. MALONEY: Your Honor, we -- we have no objections to the protective order as -- as supplied.

A.L.J. LEARY: Okay. Going to Department of Public Service trial staff, any proposed changes, or revisions to the protective order -- order?

MR. FORST: Good morning, Your Honors. We would have, I think, two or three limited, I would say, extremely limited revisions. One is a

typographical error, and then a couple are just process oriented.

A.L.J. LEARY: Oh, it's a typo. But these of course would be most welcome, particularly, if they're typos. Fine. Is Friday, June 16th a sufficient time for you to provide those to all parties? I'd like to see you send them to all parties first and then send them on to us because we'd like to resolve whatever, maybe another party has in terms of an objection.

So would you do that between now and Friday? And then, if there are any issues, whoever is disputing the revisions can respond to your submission on June 16th if you have not resolved it.

MR. FORST: That works splendidly, Your Honors.

A.L.J. LEARY: Okay. Let me open this up to the City of New York and I think, it's Mr. Conway. Is that correct?

MR. CONWAY: Yes, Your Honor. This is Adam Conway. We took a preliminary review of the protective order and it appears to be identical to the one that was -- that's been used in other proceedings and as of now, we don't have any

comments. We can take a -- we'll take a look and if there is anything, we'll certainly let you know by Friday, but as of right now, not anticipating anything.

A.L.J. LEARY: Excellent. Ms. Kasow, for U.I.U. have you had an opportunity or do you have any proposed changes?

MS. KASOW: Hi, Judge Leary. I have had the opportunity to review and we do not have any proposed changes. Thank you.

A.L.J. LEARY: Thanks. So on behalf of PULP. Mr. Saavedra, have you had an opportunity to review the protective order and do you have any proposed changes?

MR. SAAVEDRA: Yes, Your Honor. PULP has no proposed changes to offer to the protective order.

A.L.J. LEARY: Excellent. Mr. Casey for N.R.D.C., have you had an opportunity to review the protective order and would you be proposing any changes?

MR. CASEY: We also do not have any changes, Your Honor.

A.L.J. LEARY: Mr. Wyman, same

questions.

MR. WYMAN: At this time, I have no proposed changes.

A.L.J. LEARY: Excellent. Okay. If everyone could be diligent in looking at what D.P.S. trial staff is going to send around and resolve any disputes, that would be much appreciated. We'll still hold that Friday, June 16th date as the outside date and, you know, we will issue a ruling very soon thereafter, adopting the protective order.

We, of course, reserve the right to consider the proposed changes and accept or reject them depending on what they are. So parties wishing to access protected information in these proceedings must execute the acknowledgment of the protective order which are attached, will be attached to the protective order ruling that we will then issue.

You're required to file it with the Secretary and serve it on all parties and the Administrative Law Judges. So that's the process set forth. I would ask everyone to review the protective order. And I -- I actually would like -- we, I've run into this in other proceedings where it's difficult to figure out who has not signed the

acknowledgment.

If you do not intend to sign the acknowledgment, I would appreciate an email from you. And on notice to all parties that you will not be signing the protective order acknowledgment. That makes it really clear the information to which you will be entitled during the proceeding.

Certainly, everything in D.M.M. that is not confidential will be available to you, but any of the information claimed to be confidential will not. There is a relatively new document category in D.M.M. that is -- was created just for these acknowledgments.

So when you file the protective order acknowledgment, you will see an option there that says protective order as the document type that you will be filing. That change should be useful to you and everyone else, so that you can review who has signed the acknowledgment, and -- and is entitled to receive confidential information.

So please take a look at that. And I would appreciate not getting any phone calls, and Judge Costello, I think I can speak for him about any problems with filing the acknowledgments. We are not

set up. Those calls should probably go to the folks that handle D.M.M. in central operations.

I want to turn to discovery issues because this usually is -- is not a problem. But there are a couple things that I want the parties to be aware of. As you know, all discovery responses are due within 10 days of service unless the requesting party grants an extension of that timeframe, and of course, that is often necessary.

We would like to be copied on any discovery that's been issued so far and discovery going forward, but only if the responses involve a dispute. So if there's an objection to the discovery or a request for exception from disclosure for confidential reasons, et cetera, please make sure that you get those discovery responses and that issue to us sooner than later.

Under Rule 5.9(c), please attempt to resolve discovery disputes among yourselves before bringing the dispute to us, including if you have questions about, you know, what is being asked or -- or answers. In bringing a discovery dispute to the A.L.J.s for resolution, you must outline the efforts you undertook to resolve the dispute; that has to be

part of your submission.

Also note, you know, discovery requests are continuing in nature and all parties are obligated to promptly amend a discovery response. If it is incorrect or no longer complete, or there's additional information that should be provided. This is in Rule 5.7.

Also, please note that all objections to discovery must be made in writing and served on all parties and the A.L.J.s. So take a look at those rules again. I don't -- I know many of you appeared and don't really need to do that, but anybody who's new to the process of a rate case, please make sure you know the procedures with respect to discovery.

This has been a recurring problem in some of my cases and it involves the filing and service of documents. So I'm going to ask the parties, feel free to review 3.5(a) because some of the more seasoned practitioners before this agency were really not aware of that. They believe that filing within D.M.M. is good service. It's not.

Service of documents is not effective upon the filing of them in D.M.M. So whoever is not on mute, please put your phone or your computer on

mute. So service of documents is not effective upon filing in D.M.M., you must serve the parties by email and the A.L.J.s by email in order to effectuate service. So take a look at that.

Part of the problem, of course, is when you file multiple documents in D.M.M., the system is set up, so that the person, you know, wanting to download those documents in, you know, on their laptop or their computer has to go into each one and wait until it's downloaded, et cetera.

Where there's an ability to save all of the attachments served by email, it's much more efficient. I'm not saying that that's the reason behind the rule, but that is the rule. Serve people by email. I -- has the company set up a portal for discovery responses or other filings, Mr. Maloney?

MR. MALONEY: Yes, Your Honor. I'm -- I'm not always the best person to speak to this, but I believe we have a SharePoint site that all of our discovery, et cetera is posted in.

A.L.J. LEARY: Okay. Is that -- that is just for discovery?

MR. MALONEY: I would ask Mr. Kiefer as to what else might be in there.

MR. KIEFER: Yeah. Thanks. Thanks, Mr. Maloney. And Judge Leary, we'd initially set up a -- a SharePoint site to convey some of the initial filing documents as well as some of the discovery that was, maybe too large to convey via email. It might have otherwise required a -- a thumb drive or -- or U.S.B. drive.

We have since worked with staff to use the Aspera program and set that up to share larger documents. Those are the two formats in which we've -- we've established with the discovery that's being Aspera going forward.

A.L.J. LEARY: So as I understand it, you have a SharePoint site for discovery documents, but an Aspera program for other documents.

MR. FORST: Your Honors, this is Nicholas Forst from D.P.S. I might be able to clarify. So the company is effectuating service of its responses to the parties, not only via email, but by their Dream system where they maintain a repository.

And I don't want to steal Kris's thunder but we have access to that. In the rare instance that there is a, you know, a significantly

large file that would not be able to be transmitted via email or placed on D.M.M. for submission to the parties.

New York State has a information technology service solution, which is what Aspera is that we utilize to take receipt of those documents, but it's merely a transmission system. So I think in a long way of answering your question, the company has their dream system, which they've used in multiple cases.

And I can attest for staff that we're very comfortable with that system.

A.L.J. LEARY: Okay. Great. Very helpful. What has been done to date to provide other parties with access to the SharePoint site or what I will call the Dream system.

MR. KIEFER: In terms of ensuring access to that, Your Honor, we -- for any of the parties that have signed up for party status, we have been providing access to Dream to those individuals. And then including them on the email service list that we are providing the discovery.

A.L.J. LEARY: Excellent. That's exactly what I wanted to hear, so -- and -- and the

company will continue to do that if we have additional participants that come in and seek party status, correct?

MR. KIEFER: That's correct. We've been updating it as parties have joined the proceeding.

A.L.J. LEARY: Okay. So here's a little bit of the punchline on, you know, the -- the beauty and yet the -- the downfall of electronic sharing. This is not designed to cast any aspersions on anyone, but -- and I think we discussed this in the last case back in 2019. There have been issues that the Department has seen, the Office of Hearings has seen where a portal or other database system maintained by one of the parties.

It can -- can be unilaterally changed without notice necessarily given to other parties of those changes. We want to avoid that not -- not only do we avoid that, but it's unacceptable and prohibited. I'm saying that flat out. So any documents and information contained in either of these systems cannot be changed at all.

If you want to update something good, that goes in as well. And just so you clarify with

all parties and the A.L.J.s that a change is being made to a document already in the system, please do so. That's a requirement. And the A.L.J.s will not be accessing either of those systems.

Either the SharePoint or the Dream system. Service of anything that's filed in D.M.M. must be made on to -- to us by email. We certainly would accept a thumb drive, hopefully not by snail mail, but by some overnight or -- or delivery option if it's -- if it's somewhat urgent.

So if it's a large document and it's going into, for example, the Dream system, we will not access that via a link. That is not what we -- that is not a protocol that we are going to be able to accept. So please be guided accordingly, particularly with respect to large documents that you're looking for action like a discovery dispute from us.

But remember that portal site or those systems must maintain the original document that was filed and the revised doc -- document that is updating or changing that. So I -- I don't think it's going to be a problem here. I think everybody's aware that this is -- and I probably -- it probably

happened inadvertently in -- in the occasions that -- that we have seen it. I don't think it was anything that was intended to be, you know, not above board.

So any questions about discovery and that process? Okay. I received an email, I think, from Mr. DeCicco this week. Is that this week or last week? This week? Monday. That proposed a schedule. I want to give the parties the opportunity to talk about that schedule.

And is there anyone participating today that has a contrary proposal or a slight revision to the proposal Mr. DeCicco circulated? Doesn't sound like anyone has a problem with it? Excellent. So let's go to that schedule because it may be the cart before the horse.

But just for the record and everyone's consideration, we will issue a ruling, a procedural ruling that sets that schedule. The company is required to file any updates to its filings by June 30th, 2023. Initial pre-trial testimony is due on Friday, September 1st, 2023.

Rebuttal testimony is due September 22nd, 2023, and we are scheduling the evidentiary hearing for October 10th, 2023 subject to any Rule

3.9, Notice of the Commencement of Settlement Negotiations. As an initial matter, please follow the required format for pre-filed testimony.

These are in the Commission's regulations in 16 NYCRR Rule 4.5. Exhibits must be a separate document or documents. And the Commission's D.M.M. system has categories for the filing of testimony and exhibits. Please classify clearly in your cover letter to the Secretary, what these documents that you're filing are.

This -- this prevents any confusion in the Secretary's office about what is being filed. I also -- we also request that staff's testimony, if -- if not, the companies' and staff's testimony characterize the rate drivers in the case, both in a positive and negative direction.

So some test -- witness testimony or panel testimony has to address that. And -- and it's -- it's certainly helpful to have an exhibit that further details it if -- if you find that appropriate. The exhibit list, Judge Costello has utilized this in other cases and it's a -- it's a really good process.

And it -- it collects on an Excel

spreadsheet, the pre-filed exhibits and really is the initiation of what will ultimately be used as the record in the proceeding, particularly in the evidentiary hearing. We will be circulating, actually, I'm not sure we're going to be circulating. We may ask the companies to create that spreadsheet once rebuttal test -- pre-filed and rebuttal testimony is in. That way we start populating that spreadsheet and -- and continue to add to it.

That will be circulated to the parties, so that you can check it as the process goes forward rather than leaving that to the very end of the proceeding before the -- or after the evidentiary hearing. Actually, it's gone on that long.

That should, you know, alleviate additional pressure, you know, surrounding the evidentiary hearing timeframe. And -- and by the way, this process will not have a bearing on exhibits introduced at the evidentiary hearing. The procedures that we intend to utilize for the evidentiary hearing and submissions before and thereafter will be outlined once we have a firm hearing date.

Any questions on that? The exhibit

list?

MR. WYMAN: Your Honor, it is Bob Wyman.

A.L.J. LEARY: Yes.

MR. WYMAN: If we could just step back one thing to the -- to the schedule. I think you said that the proposed schedule had been sent out to parties. I do not believe I received such a schedule. Would you say who sent it and -- and did they, in fact, send it to all parties?

A.L.J. LEARY: Based on the company's representations, my understanding -- have you made a party request, Mr. Wyman?

MR. WYMAN: Yes -- yes, I'm in the list, right. I believe I was the second party on the list.

A.L.J. LEARY: Okay. So I'm going to turn to the company to ask because I don't have Mr. DeCicco's. Is he on that list? I see. Okay. So this is my un -- misunderstanding, Judge Costello have a very clear understanding of this. However, it appears that the company only sent that proposed schedule to Department of Public Service staff and the City of New York and U.I.U.

So let me ask you this, Mr. Wyman. You did not get it. I'm -- I'm apologizing on behalf of companies that you did not get it. I'd like to avoid that in the future. There's no hierarchy of parties here. I'm directing this comment to the company and I'm going to ask D.P.S. trial staff to keep you honest in that regard and make them responsible for, you know, telling you to send it to all parties, whatever you're communicating to us.

And to other parties, you need to communicate to all parties unless -- well, actually, I shouldn't say unless anything. So let's set that up as a rule from the get-go. Mr. Wyman, let's cut to the chase. Do you have any comment on the schedule as it has been proposed?

I, again, June 30th is the company's corrections. September 1 is the initial testimony. September 22nd is rebuttal. October 10th is the date for the evidentiary hearing. Do you have any problem with any of those dates?

MR. WYMAN: Frankly, not off the top of my head, but I -- I -- I -- I believe all parties, even those perhaps that didn't appear here should have the opportunity to see that schedule and -- and

comments on it. I, you know, it -- it -- it's -- it's a bit of a surprise to have this presented without warning like this.

And I -- I -- I really --

A.L.J. LEARY: Okay.

MR. WYMAN: Yeah.

A.L.J. LEARY: All right. So let's do this, gentlemen.

MR. WYMAN: You know, I don't --.

A.L.J. LEARY: And I'm -- and ladies, I'd like that schedule to be circulated by the companies, Mr. DeCicco, or someone else to all parties in the proceeding today. And any comments you should provide in your transmittal email, our directive that any comments on that schedule should be submitted to us on notice to all parties by Friday, June 16th, so that we can, you know, adjust anybody's comments or, I'm not suggesting anybody has the ability to dictate the schedule, but I want everyone to have the opportunity to see it and respond to it.

If we don't hear anything from anyone by June 16th this Friday, we will -- we will base our ruling on the schedule that has been proposed. So

any questions about that going forward?

MR. MALONEY: No, Your Honor. We understand.

MR. WYMAN: Your Honor, Bob Wyman here. I wonder if I could just ask. Are there -- because I'm a little surprised by this because in the past, every time I've participated in the past, the schedule has always come out first.

I wonder if I could ask, have there been any other communications that one would traditionally think would have been ex -- delivered to all parties that -- that in this case were not. Is this -- is this -- is this some sort of novel procedure being used for other communications as well, or was it just on the schedule?

A.L.J. LEARY: Well, I -- I have to be honest with you. I have not reviewed. I don't think so for -- from Judge Costello and my standpoint. I will tell you that when the case was filed, I think it was probably the first week in May. I did telephone Mr. DeCicco and request that he provide us with a hard copy and a thumb drive of the complete filing, so we didn't have to go in and -- and -- and deal with it in D.M.M. and take hours.

So that was, I -- I want to let all parties know that that was, you know, what I consider to be innocuous communication that really fosters my and Judge Costello's ability to oversee this case and administer it.

But I'm going to ask the company to take a look at the communications that have been made to any other party or to us. I don't think there have been any others to us. And -- and Mr. Wyman, I want to apologize to you and all parties that I frankly did not notice that the communication from Mr. DeCicco did not have all parties copied on it.

I don't -- I have an assumption. I will tell everybody right now I have an assumption that when you communicate to me, you are copying all parties, and if you don't, it is ex parte. Or if you don't, it is creating a hierarchy in the case that cannot exist. It is inequitable for certain people to have access to information and certain others to not have access to information.

So it's completely contrary to the spirit, if not the letter of the Commission's regulations. So I don't want to see it again. If -- and -- and I understand that the preliminary parts of

this, you know, case and how we get up and running, this can happen.

So I'm sure Mr. Wyman, it was unintentional. Any other party who was not unintentional, I can -- I can probably, you know, hear chapter and verse from the company that it was not intended. So let's move on. Let's set Friday as the deadline to hear about the schedule that gives us time to consider comments and preparation for this hearing -- the procedural ruling.

Any other input on those issues?

MR. DECICCO: Judge, it's Phil DeCicco. I just wanted to say on behalf of the company, I -- I -- I take full responsibility for that and -- and -- and sincerely apologize and -- and assure you that that will not happen again. Obviously, it's not our intent to have anything other than a transparent process here and full input -- input from the parties and -- and -- and certainly that's not helpful.

So on behalf of the company, I -- I, you know, again, I apologize Bob, Mr. Wyman and -- and certainly we will not let that happen again.

A.L.J. LEARY: Okay. Thank you very

much for that input and I knew that. I knew you were going to say that and please, no worries. It's early in the case. So any other input?

MR. FORST: Your Honors, this is Nick Forst from D.P.S. staff. I would just state, you know, I appreciate everyone weighing in on the schedule. I would just point out that staff strongly supports the schedule that was laid out during this call as it has been the schedule we've used in the last two cases.

That September 1st date is extremely important to staff and, you know, I would just encourage folks to be very cognizant of slips in the schedule, you know, earlier or later and how that may affect everyone's ability to timely submit testimony.

A.L.J. LEARY: Okay. Thank you for that. I was just looking at the secretary's May 10th initial suspension which goes until September 30 of 2023, which does make the September 1st date very, very important. I'm jumping the -- the gun here a little bit to tell you that there -- there are growing numbers of skeptics about repeated extensions of the suspension period beyond that 11-month timeframe.

And I'm -- I'm saying this not to -- to dictate any particular result here, but we certainly are -- are well aware of the effect on the ratepayer that multiple extensions can have. Most of the folks on this call participated in the last rate case, 19-G-0309 and 0310.

And there were very unusual circumstances then, including the onset of the COVID-19 pandemic. But -- and -- and that is not going to happen here. I know that. But please -- please be very cognizant of any proposal that you may put forth on Friday that moves that September 1st date beyond September 1st.

I also want folks to be cognizant of this, you know, being summer vacation time between now and then. So thank you, Mr. Forst, I hear you. Let's move on to settlement discussions. Testimony must be filed prior to commencement of settlement discussions. I want all parties to again review the requirements of Rule 3.9, which would govern settlement.

You must file, of course, the notice of the commencement of those discussions. There seems to be a lot of wiggle room with respect to

quote, preliminary discussions. I am, you know, the product of many years of Catholic school as slippery slopes, and I'm a black and white girl on this.

Preliminary discussions, I -- it's in the eye of the beholder, and if -- if -- I'm going to behold it, I'm probably going to find that it -- it's a violation of 3.9 if there's any substance to it. So remember, all parties have to be included and that notice must be filed.

So settlement discussions are confidential. That's the other thing I want to remind folks about. Do not disclose them. During the proceeding, do not disclose them to Judge Costello and I. The parties should presume that if there is a request to delay the evidentiary hearing to pursue settlement, we are going to require an extension of this suspension period.

And we're not going to do -- we -- we -- we would prefer not to do 30-day extensions. 60 days is really what it takes to get a document up and running. So unless you are on the eve of signing a real deal, you know, please be cognizant that the suspension period, you know, is more appropriately extended for 60 days.

And again, you know, these are grumblings within my realm that multiple extensions of the suspension period, you know, are not really looked on kindly to the extent that there are impacts on ratepayers. And -- and I don't know whether the Commission would approve them or not, but there's always the potential that the Commission will not.

Any questions on that? Okay. Public statement hearings. We intend to hold virtual public statement hearings. They're going to include information sessions as well, I believe. Is that right, Judge Costello?

A.L.J. COSTELLO: Yeah.

A.L.J. LEARY: So the company, we need to get together with the parties and the company, to the extent the parties, particularly G.P.S. staff wants to participate in the public statement hearings. We really need to talk about dates.

I consider this somewhat procedural. I don't think every party has to have input on those dates, but we want to have them at a time when the company is -- is available. And it seems to me that, I don't know, September is -- comes to mind because, you know, late September because that's going to be

after the big push to get pre-filed direct and rebuttal testimony filed.

So this should give the parties, actually, we need to do it earlier, don't we? We may have to do those in August. But I just want to let everyone know we will be communicating with the company on those dates. We're -- we're happy to copy all parties on those communications.

But I think August will give the parties the opportunity to consider the comments the public have made and to take those comments into consideration in drafting testimony.

So there's a second issue here with respect to the notice of the public statement hearings, which we're going to ask the companies to publish, and we will also be in touch with the companies about that once that notice is available for issuance.

Mr. Maloney, Mr. DeCicco, are there any proposals to close call centers or other company facilities that provide customer assistance in this case?

MR. MALONEY: I don't believe so, Your Honor. No.

A.L.J. LEARY: Okay. When I say close, that includes, maybe relocation.

MR. MALONEY: We -- we -- I -- I don't believe any -- any relocation of the customers call centers.

MR. DECICCO: That's the -- yeah, that's correct, Your Honor. So we -- we are proposing in some cases to use different, sort of, outsourced vendors, especially with -- with additional language support, but -- but not necessarily moving any of our call centers, no.

MR. MALONEY: That's right.

A.L.J. LEARY: Okay. So the question is, where, in your filing, is that identified? And if it is not, it should be. I don't want you to wait until rebuttal because then folks don't have an opportunity to comment on it. So where -- where in the filing is it?

MR. DECICCO: Yeah, the proposal --.

MR. MALONEY: These are discussed in the customer testimony.

A.L.J. LEARY: I'm sorry?

MR. MALONEY: The proposals are discussed in the customer panel testimony. Excuse

me.

A.L.J. LEARY: Super. Thank you. Okay. Any questions related to the public statement hearings? I would just ask the company to internally discuss among yourselves some of the dates. I know that it will be summer and I don't want to impact vacations in setting the public statement hearings.

MR. DECICCO: Yeah, Judge. Phil DeCicco. My only observation was in -- in the last case, I think we had a -- we had a -- a good set of hearings spread out across the service territory appropriately. Some of them happened to be on the same day in different locations that made it difficult for us logistically. So I think the extent to which we could, sort of, spread them out over a period that allowed, you know, the -- the core of our team to be at all of them, that would be appreciated.

But, you know, appreciate that this is a large service territory. There's -- there's many locations that folks are interested in hearing about the case. So we will do our best to -- to manage that.

A.L.J. LEARY: We are planning to do them virtually this time subject --.

MR. DECICCO: Yeah, that certainly makes it easier.

A.L.J. LEARY: Yeah. Subject, of course to there -- there are other folks that have input on whether we will be actually able to do that. At this point in time, that is Judge Costello and my plan, but I don't want to leave the, you know, this conference and not indicate that that plan is subject to change depending on whether any of the Commissioners or any -- or the chair or anyone else.

Members of the public included, want us to appear in person, but your comment is well taken and logistically, we will certainly keep that in mind and not schedule two in one day in two different parts of that -- the service territory. So thanks for that input.

Okay. Any other questions?

MR. SAAVEDRA: Yes, Judge Leary. This is Andrew Saavedra with PULP. To that end, we just, as a general matter, we think the more opportunity there is for public input, the better.

So with that said, we -- we do want to highlight the importance that in-person public comment periods can have not only to accommodate

different work schedules, but differing tolerances to health concerns.

And yeah, just underlining that the more opportunity, the better. So for whatever that comment is worth. Thank you.

A.L.J. LEARY: Thank you. Anyone else have input or questions on the public statement hearings?

MR. WYMAN: Your Honor, Bob Wyman here. I -- I -- I believe, just my -- my own observation is that, participation in the virtual public statement hearings in many cases have been significantly greater than the participation in the in-person public hearings.

At least ones I've been to in the past. I've -- I've been to many in-person publish statement hearings where I was one of, I -- I'm the only attendee or one of only a handful. But I've never seen that on, just in the cases I've been involved in, never seen that in the virtual ones. The virtual ones always have more people.

So I -- I would like to suggest that even if -- while I definitely see the value of the -- the in-person meetings for those cases that do

attract the -- the kind of public attention that -- that causes people to go to the in-person meetings. I think it would be important to ensure that a -- that a virtual option exists as -- as -- in addition to any in-person meeting that -- that may happen.

Anyway, just because I, you know, I -- I -- I understand the value of being there in person and I've -- I've -- I have, on occasion seen people use that opportunity to, sort of, emphatically make their point.

But -- but please, let's remember, I -- my per -- personal perception is that participation increases when -- when the option of -- of attending virtually is provided. That's all.

A.L.J. LEARY: I can't disagree with you. The virtual public statement hearings have been, you know, very well attended. But I can also tell you for sure that this company participated in hearings, public statement hearings in person last year in Brooklyn with so many people that showed up.

So just to set your mind at ease, if we did need to go in person, we would still have a virtual public statement hearings as well. So it would be in addition to. So anyone else?

MR. FORST: Judge Leary, this is Mr. Forst with the Department of Public Service. You had mentioned staff participation in the public statement hearings, and I just wanted to clarify whether that was in the vein of assisting with scheduling or hosting such virtual conferences or if you anticipated staff on providing any kind of informational briefing.

A.L.J. LEARY: No. In fact, I believe, it is within your discretion to choose to attend a public statement hearing; that has been our practice at least. So I wasn't implying that trial staff had to show up. But thanks for that clarification. I didn't want to leave you with the wrong impression. It's totally within your discretion.

MR. FORST: Understood. And we appreciate that. And to the extent the company would like to consult with the parties on dates or locations or the -- the cadence of, you know, public statement hearings. Staff has had a, you know, a litany of experience in this vein, so we're willing to assist in any way possible.

A.L.J. LEARY: Excellent. Thank you

for that. Anyone else? Okay. So we went through the schedule, and I think we adequately set forth the Friday deadline to come in and discuss the dates that Mr. DeCicco will provide you by email.

Has anyone any other matters that they want to discuss during the procedural conference today?

MR. KIEFER: Judge Leary, this is Kris Kiefer with the Company. Just one clarification I was interested in regarding the -- the communications with parties. I -- I know under section, I -- I believe, it's Section 5.4 of the rules and regulations regarding informal discovery and maybe questions associated with various discovery matters.

I just want to make sure that I understand the Judge's interpretation requirements with regard to communications with the -- the broader group regarding those types of discussions to maybe get clarification about a -- a discovery request that we received from a particular party.

A.L.J. LEARY: You know, this is -- this is going to be guided by, you know, pragmatic considerations, but I will say this. Everyone who is participating in this proceeding is interested in

what the company has to say and what department staff has to say.

So I want you to be guided by that, and make sure that you don't assume that just because you have a request from, say, the City of New York or D.P.S. trial staff that no one else is interested in what's up, what's going on with that?

They're big boys and girls and they can decide not to review reading a couple of lines. They can say to themselves, this isn't something I am interested and care about. My stakeholder group, you know, has -- has some, you know, ability to -- to deal with. So I would err on the side of being more inclusive in sharing communications.

And -- and it really gives respect in my personal opinion, to those who take the time to participate in this rate proceeding. And let me tell you something. Everybody on this call, particularly the company, spends a huge amount of time dealing with this proceeding and -- and managing it, et cetera.

And it's -- it's a commitment that everyone's making. And it really informs the Commission at the end of the day. So sharing

information is critically important. This is my personal opinion. That's why you can talk to anybody that's appeared before me. Ex-parte communications are never allowed. I don't care what you're talking about.

If I have to reach out and get a thumb drive from the company, I'm going to do that. But calling me on quote, procedural grounds, everybody wants to know that procedural question or everybody might want to know what you're asking and what I'm answering. That's my personal view.

Judge Costello may feel differently, but just to avoid to -- to provide the respect to the participants in the proceeding, I would err on the side of sharing more information not less. Again, there's no hierarchy here of the parties. Everybody's on this level playing field. That's what Judge Costello and I are here to make sure of.

So let's go forward with that in mind. And there's no carve out for, you know, whatever. If you have to, you know, pick up the phone and call Mr. Forst or Couch White for the city, or PULP or something, you know, that is, I'm not trying to prohibit that. I'm just trying to have information

shared as widely as possible.

So with that in mind, let's go forward. So any -- yeah, let -- let's -- does anyone have anything further before we conclude the procedural conference?

MR. WYMAN: Yes, Your Honor. I'm sorry. Bob Wyman again. On the subject of discovery, it -- it has been the practice so far in this case that the company has distributed responses to discovery questions. I think most of them anyway, in email, which is actually very good because the Dream portal that they've set up this time is essentially unusable unless you're going for a specific document.

If you have a broader interest, it's -- it's just -- it's essentially too cumbersome. There's no way to do more than one document at a time. It takes multiple clicks to get to documents. So it's -- it's really good for the parties, I think, to be able, and for inclusion for the parties to be able to get the responses in email, so that they can organize those responses in more useful manners than the -- the thing -- than the Dream thing that they have.

And I'm wondering, is this -- is there any way, perhaps, parties, the -- the company or other parties could tell us? My hope is that this practice of distributing things via email rather than relying on the -- the Dream system will continue. I -- I wonder if we could get any sense from the company and other parties who might respond to discovery requests if -- if we can anticipate email being used as the method for distributing them.

MR. KIEFER: Yeah. And -- and Mr. Wyman, just on -- on behalf of the company, that's certainly my expectation as Judge Leary mentioned, it also consistent with the service requirements under the -- under the regulations for -- for how we're planning to continue to proceed in this matter.

A.L.J. LEARY: So correct me if I'm wrong, Mr. Kiefer. The Dream system is for very large documents only?

MR. KIEFER: No, we -- we're using that for all -- all documents, Judge Leary, the -- the Aspera system that Mr. Forst had mentioned is -- is a system to transmit the larger documents that staff has asked us to consider using.

A.L.J. LEARY: Okay. So if I

understand your response correctly, you will be circulating discovery responses by electronic email to all parties unless they've communicated that they don't want them.

MR. KIEFER: Correct. We've been doing that and we will continue to do that.

A.L.J. LEARY: Excellent. Thank you. All right. We're going to take a -- a short break before concluding the procedure -- or we -- we can go off the record? Okay. I thought Judge Costello may have something else. We're going to take a five-minute break. And before we start with the technical conference.

So we are going to go off the record. Thank you, Mr. Hubbard. We will be back shortly.

THE REPORTER: Oaky, going to go off the record.

(The conference concluded at 11:04 a.m.)

STATE OF NEW YORK

I, HOWARD HUBBARD, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 46, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 21st day of June, 2023.

HOWARD HUBBARD, Reporter